

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

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RONALD BRATTON,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, Lt PATRICK O. DOUGLAS,
P.O. BRYAN COLUCCIMOLINA, P.O. MANUEL
DAVILA and OFFICERS JOHN DOE 1 - 6, names
presently unknown by Plaintiff and meant to designate
additional offending officers, Individually and in
their official capacities

The basis of venue is:
CPLR 504 (3)

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

February 12, 2023



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

Lt PATRICK O. DOUGLAS, P.O. BRYAN COLUCCIMOLINA, Shield 19032, P.O. MANUEL DAVILA,
Shield 5159, all of the 44th Precinct, 2 E 169th Street, Bronx NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RONALD BRATTON,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Lt PATRICK O. DOUGLAS,
P.O. BRYAN COLUCCIMOLINA, P.O. MANUEL
DAVILA and OFFICERS JOHN DOE 1 - 6, names
presently unknown by Plaintiff and meant to designate
additional offending officers, Individually and in
their official capacities

Defendants.

-----X

Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF RONALD BRATTON

1. At the time of the commencement of this action, plaintiff RONALD BRATTON

was and still is a resident of the County of Bronx and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and

State of New York.

3. That at all times herein mentioned, Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about November 17, 2021, Lt PATRICK O. DOUGLAS was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about November 17, 2021, at approximately 9 P.M. Lt PATRICK O. DOUGLAS was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about November 17, 2021, P.O. BRYAN COLUCCIMOLINA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about November 17, 2021, at approximately 9 P.M. P.O. BRYAN COLUCCIMOLINA was working and acting within the scope of her employment as a Police Officer, and under the color of law.
9. That on and about November 17, 2021, P.O. MANUEL DAVILA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

10. That on and about November 17, 2021, at approximately 9 P.M. P.O. MANUEL DAVILA was working and acting within the scope of her employment as a Police Officer, and under the color of law.

11. That on and about November 17, 2021, OFFICERS JOHN DOE 1 - 6, whose names are presently unknown by Plaintiff but necessarily known by Defendants due to their participation in the assault and arrest of Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

12. That on and about November 17, 2021, at approximately 9 P.M. OFFICERS JOHN DOE 1 - 6 were working and acting within the scope of their employment as a Police Officer(s), and under the color of law.

13. That on or about November 17, 2021 at approximately approximately 9 P.M., at or near the the vicinity of Apartment 2B of 1176 Nelson Avenue, Bronx, New York, the plaintiff RONALD BRATTON was improperly assaulted, confined and detained without warrant, without privilege, proper authority or justification, having no reason in law or in fact to assault, arrest or confine RONALD BRATTON.

14. That at the above time and place plaintiff was a lawful, law abiding resident of the above address.

15. That at all times mentioned herein Plaintiff was and is a person of color who has and had a physical disability.

16. That prior to the complained of events herein, a victim of a violent crime who was inside of Plaintiff's apartment notified the Defendants that a dangerous condition that existed within the apartment, to wit: She was being attacked by her partner, an individual who was not the Plaintiff.

17. That the defendants responded to the victim, and presented outside the apartment, but then left.

18. The aforesaid victim then later called 911 again and reiterated the that dangerous condition, created by the assailant who was not Plaintiff, continued to exist within the apartment

19. That at the time and place aforesaid the named and certain unnamed officers then did enter Plaintiff's apartment and took positive control of a known and dangerous safety condition.

20. That Plaintiff was an innocent individual in the targeted premises.

21. That at the time and place aforesaid the named and certain unnamed officers did violently assault and detain Plaintiff without any justification, without due care, without reasonable probably or just cause.

22. At the time and place aforesaid Plaintiff, while attempting to comply with the Officers unreasonable actions, and fearing for his well being and safely, was pushed, shoved and violently thrown to the floor of his apartment and physically restrained.
23. That the defendants, their agents, servants and/or employees detained the plaintiff RONALD BRATTON without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
24. That the defendants did, during the aforesaid events visited upon plaintiff, utilize unjustified, unnecessary excessive force.
25. That the defendants did, during the aforesaid wrongful arrest of plaintiff, assault and batter Plaintiff.
26. That the defendants did undertake these actions, thereby depriving Plaintiff of constitutionally guaranteed rights, individually, and as State actors in the course of their employment with the CITY OF NEW YORK.
27. That the defendants, their agents, servants and/or employees unlawfully assaulted and detained the plaintiff RONALD BRATTON, who was aware of his unlawful detention and confinement without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

28. That the defendants, their agents, servants and/or employees undertook these actions against the plaintiff due to racism and prejudice and without any basis in law or fact.

29. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly assaulting and detaining innocent citizens, and engaging in such a policy and procedure without individualized reasonable or probable cause or justification for nefarious, unlawful reasons, including racial bias, to satisfy arrest quotas, to obtain overtime pay and/or for employment advancement and/or to attempt to justify their own wrongful conduct, and without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers.

30. That said illegal and unlawful assaults and arrests of innocent persons without reasonable or probable cause and conducting searches in public and while in custody are a matter of policy and record and openly acknowledged or known by the defendants and their supervisors, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained.

31. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.
32. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting persons for conduct that is not criminal.
33. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department..

34. Furthermore the CITY OF NEW YORK allowed, condoned, permitted and caused such a policy and procedure and in an effort to subjugate certain minority male populations as an excuse for selectively enforcing supposed 'quality of life' violations.

35. For instance, statistical analysis of the 51,503 criminal cases in New York City from 2009 through 2014 charging resisting arrest show that 5% of officers account for 40% of resisting arrest charges and 15% of officers account for nearly 75% of such cases and 60% of officers made arrests while never charging resisting arrest, evincing, among other things, the violent nature of only certain officers, including the named offers herein.

36. Moreover, patterns of such the aforesaid conduct of unjustified force is demonstrated because multiple individuals have been subject to the same unfortunate circumstances whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

37. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf . That report determined that the

New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein.

38. That no negligence or actions on the part of the plaintiff RONALD BRATTON contributed to the occurrences alleged herein in any manner whatsoever.

39. The herein above described actions and omissions, engaged in under the color of law by the defendants, their supervisors and commanders and the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, institutionalized procedure and act, deprived the Plaintiff of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of her person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel

and unusual punishment, the 14th Amendment's right to be free of a deprivation of liberty without due process and equal protection, and as applicable under Title 42 U.S.C. 1983, et seq.

40. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

41. That as a result of the foregoing, the plaintiff RONALD BRATTON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF RONALD BRATTON

42. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 37 as though more fully set forth herein.

43. That on December 17, 2021, and within 90 days after the claims herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

44. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notices of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant.

45. That on March 11, 2022 the plaintiff did appear and give testimony at a General Municipal Law §50h hearing demanded and scheduled by the CITY OF NEW YORK.

46. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

47. That on or about November 17, 2021 at approximately 9 P.M., at or near the the vicinity of 1176 Nelson Avenue, New York, and specifically within and about Apartment 2B, the plaintiff RONALD BRATTON was improperly assaulted and detained and confined without warrant, without privilege, proper authority or justification or reasonable or probable cause, having no reason in law or in fact to assault and detain RONALD BRATTON.

48. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff RONALD BRATTON of Due Process under Law.

49. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, NEW YORK CITY POLICE DEPARTMENT, Lt PATRICK O.

DOUGLAS, P.O. BRYAN COLUCCIMOLINA, P.O. MANUEL DAVILA and OFFICERS

JOHN DOE 1 - 6, were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to Assault, Battery and False Arrest, and the defendants were otherwise careless, reckless and negligent.

50. That the plaintiff RONALD BRATTON, being aware of his unjust confinement, suffered severe and serious physical, emotional and psychological trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, Lt PATRICK O. DOUGLAS P.O. BRYAN COLUCCIMOLINA, P.O. MANUEL DAVILA and OFFICERS JOHN DOE 1 - 6.

51. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

52. That as a result of the foregoing, the plaintiff RONALD BRATTON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF RONALD BRATTON

53. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 48 as though more fully set forth herein.

54. That at the time and place aforesaid the named and certain unnamed officers then did enter Plaintiff's apartment and took positive control of a known and dangerous safety condition.

55. That Plaintiff was an innocent individual in the targeted premises.

56. That during his aforesaid arrest and detainment, the defendants, their agents, servants and/or employees assaulted and then physically restrained Plaintiff and utilized unnecessary, excessive and unjustified force against the Plaintiff.

57. That during his aforesaid detention and arrest, the defendants, their agents, servants and/or employees assaulted and battered Plaintiff.

58. As a result of the aforesaid assault, plaintiff RONALD BRATTON received injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual avocations and was otherwise damaged and injured.

59. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

60. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

61. That as a result of the foregoing, the plaintiff RONALD BRATTON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF RONALD BRATTON

62. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 64 as though more fully set forth herein.

63. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

64. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals and in the proper use of force.

65. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, plaintiff RONALD BRATTON was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

66. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second, Third and Fourth Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated:Bronx, N.Y.

February 12, 2023



By: JONATHAN L. GLEIT, ESQ.

Attorney for Plaintiff

RONALD BRATTON

888 Grand Concourse

Suite 1-O

Bronx, NY 10451

(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL

100 Church Street, 4th Floor, Law Dept.

New York, New York 10007

Lt PATRICK O. DOUGLAS,P.O. BRYAN COLUCCIMOLINA, Shield 19032, P.O.

MANUEL DAVILA, Shield 5159, all of the 44th Precinct, 2 E 169th Street, Bronx NY
10452

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

RONALD BRATTON

I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is presently outside of the county wherein your affirmant maintains his office.

DATED: Bronx, N.Y.

February 12, 2023



JONATHAN L. GLEIT, ESQ.